

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

EMERGENCY THIRD JOINT MOTION FOR
ENLARGEMENT OF TIME

Samsung Electronics America, Inc. (“Complainant” or “SEA”), together with Respondents Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. (collectively “Respondents” or “OOCL”) (together with SEA, collectively the “Parties”), by and through their undersigned counsel, hereby submit this Emergency Third Joint Motion for Enlargement of Time.

Pursuant to 46 C.F.R. § 502.102, motions for enlargement of time “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date. Motions filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to meet this requirement.” Further, pursuant to 46

C.F.R. § 502.105, the Presiding Officer may, for good cause, reduce or enlarge any time limit prescribed in the Commission's rules.

Pursuant to the March 31, 2025 Order Granting Complainant SEA's Motion to Dismiss Respondent OOCL's Counterclaim, the Parties have been ordered to file their Joint Status Report no later than 15 days following the March 31, 2025 service date, making the due date today, April 15, 2025.

The Parties have been in communication regarding the Joint Status Report since last week and have been cooperating diligently to meet the Commission's deadlines, however multiple elements of good cause weigh in favor of granting this Joint Motion.

First and foremost, SEA requires additional time to review and sign off on the Joint Status Report. The Parties have been in discussions regarding the Joint Status Report since early last week and have exchanged draft versions of the Joint Status Report. The corresponding revisions to the Joint Status Report require SEA's corporate review and signoff, however in light of unexpected travel schedules, SEA has been unable to review and confirm those recent changes. Accordingly, Complainant requires a few additional days to review and confirm those joint changes.

Second, good cause exists to grant this Emergency Joint Motion because OOCL intends to file Exceptions to the March 31, 2025 Order Dismissing Respondent's Counterclaim, along with a Motion for Stay pending a ruling from the Commission on OOCL's Exceptions and resolution of SEC's status. In light of SEC's fully briefed Motion to Dismiss OOCL's Third-Party Complaint and in the interest of judicial efficiency, SEA is willing to defer the start of discovery until SEC's status in the pending matter has been determined by the Presiding Officer, but has advised OOCL that it otherwise intends to oppose the Motion for Stay. OOCL is permitted to file its Exceptions

within twenty-two (22) days following the dismissal of its counterclaim against SEA, making the deadline for filing its Exceptions April 22, 2025.

The Parties have met and conferred on this Emergency Motion on April 15, 2025 and Respondents do not oppose this request for an enlargement of time. In light of the anticipated Motion for Stay pending a ruling from the Commission on OOCL's anticipated Exceptions to the Order Granting Complainant's Motion to Dismiss Respondent's Counterclaim of March 31, 2025, as well as SEA's request for a few additional days to review and confirm the joint submission, the Parties request an enlargement of time on the filing of the Joint Status Report, pending a ruling on the anticipated Motion to Stay, and the resolution of the status of SEC.

The Parties agree that this will not cause any undue delay, disadvantage, or prejudice to either side. The granting of this Emergency Motion, alongside a ruling on the Motion to Stay and the resolution of the status of SEC in the litigation, would promote judicial efficiency and permit the Parties to propose a workable Discovery Schedule; one of the primary objectives of the Joint Status Report, and an element which would be lacking from any Joint Status Report that would be submitted in advance of the resolution of those issues.

For the reasons set forth above, the Parties respectfully request that the Emergency Joint Motion for Enlargement of Time be granted, and that a revised Joint Status Report deadline be issued subsequent to rulings on (1) SEC's Motion to Dismiss OOCL's Complaint and (2) OOCL's anticipated Motion for Stay.

Dated: April 15, 2025

Respectfully Submitted,

(Execution page below)

MILLS BLACK LLP

By: /s/ Peter F. Black

Peter F. Black
H. Allen Black
Imran O. Shaukat
1215 19th Street NW,
Washington, D.C. 20036
Telephone: (202) 987-4103
Email: pblack@millsblack.com
Email: hallenblack@millsblack.com
Email: ishaukat@millsblack.com

*Counsel to Complainant, Samsung
Electronics America, Inc.*

COZEN O'CONNOR, P.C.

By: /s/ Christopher Raleigh

Wayne R. Rohde
Christopher Raleigh
Kathryn Sobotta
Rachel Schwartz

1200 19th Street Northwest, Floor 3
Washington, DC 20036
Telephone: 202-463-2507
Facsimile: 202-640-5912
Email: wrohde@cozen.com
Email: craleigh@cozen.com
Email: ksobotta@cozen.com
Email: rschwartz@cozen.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

**JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC**

By: /s/ Eric C. Jeffrey

Eric C. Jeffrey
Rebecca A. Fenneman
Kaya C. Massey
Nicholas L. Webb
700 12th Street, NW Suite 700
Washington, DC 20005
Email: EJeffrey@JeffreyFenneman.com
Email: RFenneman@JeffreyFenneman.com
Email: KMassey@JeffreyFenneman.com
Email: NWebb@JeffreyFenneman.com

*Counsel to Respondents, Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Alex M. Chintella - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents
 - a. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - b. Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
 - c. Kaya C. Massey
KMassey@JeffreyFenneman.com
 - d. Nicholas L. Webb
NWebb@JeffreyFenneman.com
4. Cozen O'Connor
Counsel for Respondents
 - a. Wayne R. Rohde
wrohde@cozen.com
 - b. Christopher Raleigh
craleigh@cozen.com
 - c. Rachel Schwartz
rschwartz@cozen.com
 - d. Kathryn Sobotta
ksobotta@cozen.com
5. Hohenstein & Parkinson, LLP
Specially Appearing Counsel for Third-Party Respondent
 - a. James H. Hohenstein
jim.hohenstein@hplawnyc.com

Dated: April 15, 2025

By: /s/ Peter F. Black

Peter F. Black
MILLS BLACK LLP
Counsel to Samsung Electronics America, Inc.